

Court No. - 34

Case :- WRIT - C No. - 7892 of 2019

Petitioner :- Sudama Prasad Patairiya

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Shrawan Dwivedi

Counsel for Respondent :- C.S.C.

Hon'ble Sudhir Agarwal,J.

Hon'ble Rajendra Kumar-IV,J.

1. Heard Sri Shrawan Dwivedi, learned counsel for petitioner and learned Standing Counsel for State respondent.
2. Dispute relates to non grant of new electricity connection to petitioner for which he has submitted application on 28.01.2019.
3. If there is any dispute with regard to grant of electricity connection, petitioner has remedy before Consumer Redressal Forum under para 7.10 (i) of Electricity Supply Code, 2005 (hereinafter referred to as 'Code') read with UPERC (Consumer Grievance Redressal Forum and Ombudsman) Regulations, 2003 (hereinafter referred to as "Regulations, 2003") and thereafter, remedy is provided before Ombudsman under para 7.10 (iv) of the Code read with Regulations, 2003. Learned counsel for petitioner also could not substantiate any argument so as not to relegate the petitioner to avail aforesaid alternative remedy.
4. In view thereof, this writ petition is dismissed on the ground of alternative remedy.

Order Date :- 8.3.2019

Manish Himwan